

ENTERPRISE SAAS SUBSCRIPTION AGREEMENT

This Enterprise SaaS Agreement is effective as of November 1, 2026, between CloudMatrix Solutions Inc. ('Provider') and Horizon Retailers LLC ('Subscriber').

1. SUBSCRIPTION ACCESS

Provider grants Subscriber a non-exclusive, non-transferable subscription to access and use the cloud analytics software during the agreed subscription term.

2. FEES AND PAYMENT TERMS

Invoices are payable net 30 days. Delinquent accounts shall bear interest at a rate of 1.5% per month or the highest legal rate permitted under applicable law, whichever is less.

3. PROPRIETARY RIGHTS

Subscriber acknowledges that all custom modules developed by Provider shall be considered works made for hire belonging solely to Subscriber upon receipt of payment.

4. DEFENSE AND INDEMNIFICATION

Provider agrees to defend, indemnify, and hold harmless Subscriber against any third-party claims alleging that the software infringes any valid patent or copyright.

5. LIMITATION OF LIABILITY

Except for liabilities arising under Section 4 (Indemnification) or willful misconduct, neither party's aggregate liability under this agreement is capped at the total amounts paid in the preceding twelve months.

6. DISPUTE RESOLUTION AND VENUE

The parties agree that any action or claim arising out of this agreement shall be submitted to the exclusive jurisdiction in Cook County, Illinois.

7. TERM AND TERMINATION

Either party may terminate this agreement for convenience upon sixty (60) days prior written notice to the other party.